

SERVICE CONTRACT

This Agreement is entered into as of Jul 15, 2023 (the "Effective Date") by and between Delta Systems, with its principal place of business in Denver, CO ("Client"), and Apex Manufacturing, with its principal place of business in Atlanta, GA ("Provider"). The parties agree as follows:

1. Limitation of Liability

Except for breaches of confidentiality, neither party shall be liable for any indirect, incidental, special, or consequential damages arising out of this Agreement. Each party's aggregate liability shall not exceed the total fees paid or payable by Delta Systems in the twelve months preceding the claim.

2. Confidentiality

Each party agrees to hold in strict confidence all non-public information disclosed by the other party in connection with this Agreement, and to use such information solely to perform its obligations hereunder. This obligation survives termination of this Agreement for a period of 6 months.

3. Compensation

In consideration of the Services, Delta Systems shall pay Apex Manufacturing fees not to exceed \$141,000 per invoice period. All invoices are payable within 60 days of receipt. Amounts unpaid after the due date accrue interest at the lesser of 1.5% per month or the maximum rate permitted by law.

4. Independent Contractor

Apex Manufacturing is an independent contractor and nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship between the parties. Apex Manufacturing is solely responsible for its own taxes, insurance, and employee obligations.

5. Termination

Either party may terminate this Agreement upon 60 days' written notice to the other party. Either party may terminate immediately upon a material breach by the other party that remains uncured 60 days after written notice of the breach.

6. Entire Agreement

This Agreement, together with its exhibits, constitutes the entire agreement between Delta Systems and Apex Manufacturing with respect to its subject matter and supersedes all prior or contemporaneous understandings. Any amendment must be in writing and signed by both parties.

7. Intellectual Property

All work product created by Apex Manufacturing specifically for Delta Systems under this Agreement shall be the sole property of Delta Systems upon full payment of the applicable fees. Apex Manufacturing retains ownership of its pre-existing materials, tools, and methodologies.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Maria Dubois, Delta Systems

Elena Johnson, Apex Manufacturing